

24STCV07715 24STCV07715

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-09-23

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Case Number: 24STCV07715 Hearing Date: September 23, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

SHILOH PARKER,

Plaintiff,

vs.

HALEY FREIBERGER, et al.,

Defendants.

Case No.:

24STCV07715

Hearing Date:

September 23, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF SHILOH

PARKER'S FIRST AMENDED MOTION TO STRIKE AND TAX COSTS

Background

Plaintiff

Shiloh Parker ("Plaintiff") filed this action on March 27, 2024 against Defendants Haley Freiburger and Kyle Freiburger (jointly, the "Freibergers").

The complaint

alleges causes of action for (1) "fraud by intentional misrepresentation," (2) "fraud by negligent misrepresentation," (3) "breach of good faith and fair dealing covenant," (4) violation of Business and Professions Code section 17200 et seq., and (5) breach of oral contract.[1]

On

October 22, 2024, "the Court grant[ed] the Freibergers' motion to quash on the grounds that the Court lacks personal jurisdiction over the Freibergers." (Order 10/22/24, 15:20-21.)

Thereafter,

on December 3, 2024, the Court signed the proposed judgment submitted by the Freibergers on October 31, 2024. (See Order 12/3/24, 13:3-4; Judgment 12/3/24.)

On

December 18, 2024, the Freibergers filed a memorandum of costs.

On

December 23, 2024, Plaintiff filed a motion to strike and tax costs and a request for sanctions. The Court did not previously hear this motion.

Thereafter,

on December 16, 2025, Plaintiff filed a first amended motion to strike and tax costs.

On July 2, 2026, the Freibergers, as Specially Appearing

Defendants, filed a notice “withdraw[ing] their Memorandum of Costs filed on December 18, 2024, which sought costs in the amount of \$2,447.63.” (Withdrawal, 2:2-3.) Plaintiff did not reply.

Discussion

The Freibergers’

notice of withdrawal explains that because they “no longer seek recovery of the costs claimed in that Memorandum of Costs, Plaintiff Shiloh Parker’s Motion to Strike and Tax Costs and Request for Sanctions, currently set for hearing on September 23, 2026, is moot. Specially Appearing Defendants respectfully request that the Court vacate the September 23, 2026 hearing or deny the motion as moot.” (Withdrawal, 2:4-8.) The Freibergers clarify that

“[t]his withdrawal is limited to the Memorandum of Costs filed on December 18, 2024, and does not waive any rights Specially Appearing Defendants may have to seek appellate costs, sanctions, attorneys’ fees, or any other relief not expressly withdrawn herein.” (Withdrawal, 2:9-11.)

As a preliminary

matter, the Court notes that Plaintiff’s notice of motion for the amended motion also seeks “sanctions against Defendants and Defendants’ attorney for filing this frivolous filing.” (First Am. Notice of Mot., 2:17-18.) However, Plaintiff’s memorandum in support does not appear to discuss or elaborate on this point. Thus, the only relief Plaintiff seeks is to tax or strike the Freibergers’

memorandum of costs. Without a

memorandum of costs in which the Freibergers seek costs, no controversy

remains, and the relief Plaintiff seeks is unavailable. Accordingly, Plaintiff’s motion to strike or tax costs is moot, and the Court denies the motion.

Conclusion

In light of the foregoing, Plaintiff’s motion to strike or tax costs is DENIED as MOOT.

Plaintiff is ordered to give notice of this
Order. ∴ ∴

DATED: September 23, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court

[1] The Court notes
that the caption page of the complaint appears to reference a cause of action
for “disgorgement,” but the remainder of the complaint does not appear to
contain any such cause of action.